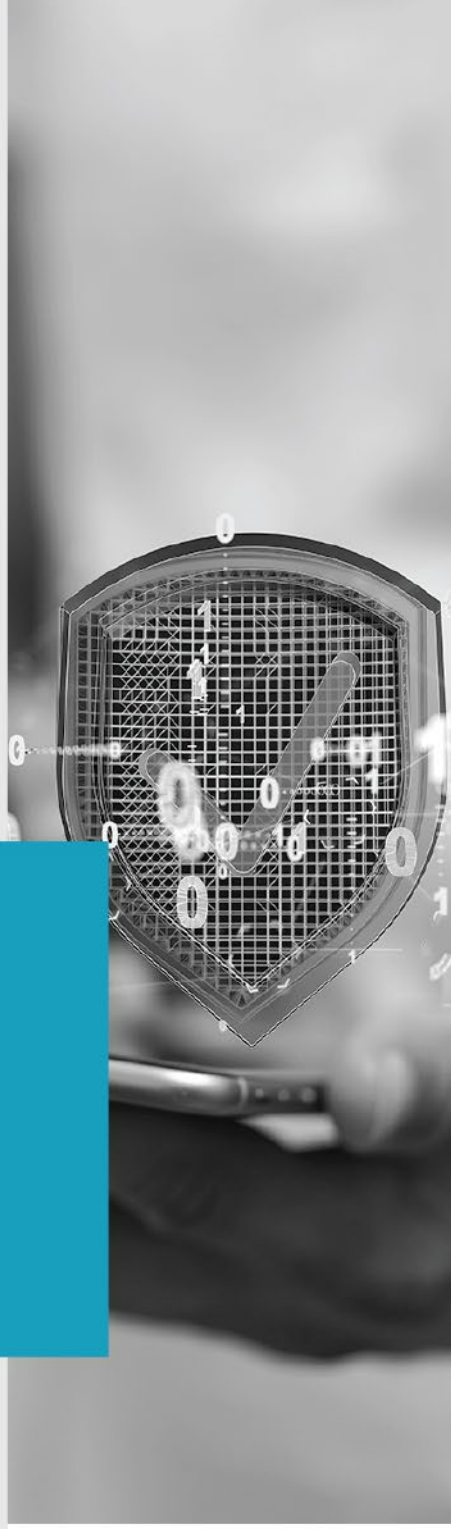
АГЕНЦИЈА ЗА ЗАШТИТА
НА ЛИЧНИТЕ ПОДАТОЦИ

STRATEGY

for the Implementation of the Right to **Personal Data Protection** for the Republic of North Macedonia 2025-2030



STRATEGY

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2025-2030



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CONTENT

1. FOREWORD.....7

2. MISSION AND VISION OF THE STRATEGY FOR THE IMPLEMENTATION OF THE RIGHT TO PERSONAL DATA PROTECTION IN THE REPUBLIC OF NORTH MACEDONIA (2025-2030).....10

3. STRATEGIC GOALS.....11

3.1. Strategic goal 1 – Ensure the overall autonomy and independence of the PDPA.....11
3.2. Strategic goal 2 – Harmonize legislation.....13
3.3. Strategic goal 3 – Foster a continuous increase in personal data protection culture.....14
3.4. Strategic goal 4 – Implement Accountability Tools.....16

4. STRATEGIC MAP FOR THE PERIOD 2025-2030.....19

5. MONITORING AND ASSESSING STRATEGY PROGRESS.....20

5.1. Proposed monitoring approach for Strategy implementation.....20
5.2. Proposed system of KPIs.....21

LIST OF ABBREVIATIONS

PDPA	Personal Data Protection Agency
DPO	Data Protection Officer
LPDP	Law on Personal Data Protection
GDPR	General Data Protection Regulation
KPI	Key Performance Indicator
AI	Artificial Intelligence
EU	European Union

1. FOREWORD

This document represents the third strategic framework for the protection of personal data in the Republic of North Macedonia. It has been created to address the needs and perspective of stakeholders, align with the governing legislation, evaluate the current state of personal data protection, and anticipate future challenges in this domain. The strategy adopts a comprehensive and modern approach to privacy and personal data protection, covering the period of 2025-2030. In an era where the value and volume of data are increasing exponentially, privacy and personal data protection have become critical topics and potential sources of competitive advantage. The Personal Data Protection Agency (PDPA) must operate within the context of continuous digitalization, identifying emerging trends in data processing and addressing the risks they pose to data privacy.

The Strategy for the Implementation of the Right to Personal Data Protection 2025-2030 was developed with expert support from the European Commission. Consultations were conducted with representatives from the public and private sectors, as well as citizens› associations. This collaboration significantly benefited the PDPA, given that privacy and personal data protection transcend all areas of public and private life and extend beyond the borders of the Republic of North Macedonia. To gather additional insights, a workshop organized with stakeholders, including representatives from municipalities, banks, telecommunication operators, law firms, state institutions, trading companies, etc. These discussions focused on global trends and local challenges affecting personal data protection in the Republic of North Macedonia. The information collected during these consultations and workshops has been integrated into the development of the PDPA's new strategic goals, mission, vision, and values.

In this context, it is important to emphasize that the awareness of controllers and citizens regarding personal data protection has significantly increased through the implementation of the Law on Personal Data Protection (LPDP). This law introduced comprehensive and preventive implementation mechanisms that align with the standards of the General Data Protection Regulation (GDPR). To this end, the contribution of stakeholders has been invaluable in shaping the Strategy, which aims to reflect the impact of the law on the lives of citizens and controllers in the Republic of North Macedonia. It seeks to promote improved outcomes in both personal and professional domains, without compromising the interests of either party.

It should also be noted that the Strategy is a dynamic document. If necessary, it can be revised or adapted to address emerging challenges arising from technological advancements, changes in legislation, or other factors that may influence its goals, assumptions, resources, and stakeholders.

In developing this Strategy, we considered previous strategies for personal data protection, European Commission Reports on North Macedonia, as well as the guidelines outlined in the Manual for the Structure, Content and Method of Preparation, Implementation, Monitoring, Reporting and Evaluation of Sectorial and Multi-Sectorial Strategies [1]. Additionally, a SWOT analysis was conducted to summarize the current state of personal data protection in the Republic of North Macedonia:

STRENGTHS	WEAKNESSES
• **Robust Legal Framework:** The PDPA operates within a comprehensive legal framework that aligns closely with EU acquis. • **Effective Cooperation and Networking:** Strong cooperation among Data Protection Officers (DPOs) is a significant strength. Sector-specific networking, such as partnerships with bar associations and municipalities, further enhances their efficiency. • **User-Friendly Website:** The Agency's website offers valuable resources and information in a highly accessible manner. • **Experienced Staff at the PDPA:** The Agency benefits from a team of seasoned professionals with expertise in data protection and privacy matters.	• **Isolation of DPOs:** DPO's often work in isolation within their organizations. Their role is frequently misunderstood, they lack sufficient influence on data protection matters, and their independence is not adequately guaranteed. • **Incomplete Implementation:** Certain provisions of the LPDP are challemging to implement in practice. Too many controllers fail to adequately apply data protection measures. • **Non-compliance of Sectoral Legislation on Misdemeanours with the GDPR:** Misdemeanour sanctions must be dissuasive, effective, and proportionate. Therefore, amendments to sectorial legislation related to misdemeanours are necessary to align with GDPR standards. • **Non-transposition of the Law Enforcement Directive:** The absence of national legislation transposing the EU directive on personal data processing by law enforcement authorities is a significant issue that requires urgent resolution. • **Low Public Awareness:** Many citizens remain unaware of data protection legislation, their rights in this area and how to exercise these rights. While awareness is somewhat better among public authorities, significant improvement is still needed. • **Resource Constraints:** Budget limitations and severe staffing shortages hinder the PDPA's capacity to manage increasing caseloads and effectively fulfil its duties and powers.

1 "Official Gazette of the Republic of North Macedonia" no. 122/2022

OPPORTUNITIES	THREATS
• **Acquired Knowledge and Skills:** DPOs must possess the knowledge and skills necessary to confidently advocate for the importance of personal data protection. • **Collaboration and Experience Sharing:** Establishing interoperability platform to facilitate communication and experience sharing among DPOs can benefit all stakeholders. Regular meetings on specific topics can build trust and encourage breach reporting. • **Expanded DPO Training:** Increasing training opportunities for DPOs will foster a stronger data protection culture nationwide. • **Empowering DPOs:** Strengthening the position and independence of DPOs, including ensuring their direct accountability to top management, is essential. • **Public Awareness Campaigns:** Raising awareness among citizens and public employees will enhance general data protection knowledge and create pressure on data controllers to effectively implement data protection practices. • **Management's Awareness:** Ensuring that top management within data controllers understands data protection legislation is crucial. • **Consultation with Institutions:** Engaging institutions for input on challenging issues can lead to more effective implementation. • **Financial Independence and HR:** Adequate funding and staffing are vital for the Agency to effectively carry out its tasks and powers. • **Website Optimization:** Enhancing the website's user experience, including offering standardized forms, will improve communication. • **Cross-Border Cooperation:** Strengthening relationships with Data Protection Authorities (DPAs) and international organisations will enhance enforcement efforts and ensure alignment with international practices.	• **Lack of Harmonisation:** The PDPA may have to operate within a legal framework where laws conflict with each other or do not align with EU legislation. • **Lack of Independence:** The PDPA may remain dependent on submitting recruitment decisions to the Ministry of Finance and other institutions. • **Enforcement Limitations:** The PDPA's legal authority to enforce misdemeanour sanctions for violations of this law may not be dissuasive, effective, or proportionate. • **Failure to Adopt Amendments to the LPDP to Facilitate the Transfer of Personal Data,** which is critical for avoiding complications and enabling domestic controllers and processors to remain competitive in EU and third-country markets. • **Challenges arising from the Rulebook on Security of Personal Data Processing:** Some security rules outlined by the PDPA may be impractical to implement (e.g., monthly log audits). • **Distance from Citizens and DPOs:** Insufficient and adequate resources to maintain regular contact may result in diminished trust.

2. MISSION AND VISION OF THE STRATEGY FOR THE IMPLEMENTATION OF THE RIGHT TO PERSONAL DATA PROTECTION IN THE REPUBLIC OF NORTH MACEDONIA (2025-2030)

Having all above of the above in mind, we have agreed on the following:

- **Mission**

  Our **mission** is to protect citizens' rights by promoting a culture of transparency and accountability.

The Strategy includes a vision that outlines strategic priorities:

- **Vision**

  Our **vision** is to foster an open and harmonized data protection environment, enhancing public trust in data protection practices and proactively engaging stakeholders.

3. STRATEGIC GOALS

In order to fulfil the Mission and Vision, the following four strategic goals have been identified as crucial for implementation. These goals focus on priority areas of action where key challenges in personal data protection will be addressed:

- Strategic goal 1: Ensure the overall autonomy and independence of the PDPA.
- Strategic goal 2: Harmonize legislation.
- Strategic goal 3: Foster a continuous increase in personal data protection culture.
- Strategic goal 4: Implement accountability tools.

Below, we provide a more detailed explanation of these goals and the corresponding activities. The Annex will outline the actions required to achieve these goals, including an action plan with indicators to measure results.

3.1. Strategic goal 1 – Ensure the overall autonomy and independence of the PDPA

> *Desired outcome: Our primary objective is to ensure that PDPA has all the necessary resources to perform its functions and powers efficiently and effectively, emphasizing its independent, autonomous, and impartial functioning as outlined in the GDPR.*

Adoption of the Law Amending and Supplementing the Law on Personal Data Protection in order to ensure the autonomy and independence of the PDPA in managing finances and human resources

The PDPA has prepared a Draft Law for Amending and Supplementing the Law on Personal Data Protection because the Law. This law has not fully implemented the provisions necessary for the PDPA to have the resources needed to perform its functions and powers effectively. These amendments will guarantee the PDPA's complete autonomy and independence, particularly in managing both human and financial resources without influence (opinions and approvals) from other institutions.

Budget constraints and severely limited staff may hinder the PDPA›s ability to carry out its tasks and powers. The adoption of the prepared Draft Law will enable creation of conditions to provide sufficient funds for the efficient and effective performance of PDPA's tasks and powers, ensuring its independence and autonomy in managing these allocated funds.

Strengthening the capacities of the PDPA

The PDPA must continuously organize training programs to enhance the skills of its employees. Given the increasing demands in areas requiring specialized knowledge, PDPA staff should be equipped to understand and oversee new technologies (e.g. implementation of AI-based systems). The PDPA should be recognized as an institution that fosters self-development and education of its employees – an environment that challenges staff to improve their skills and where they are highly valued and respected.

A key element in achieving PDPA's complete independence is the autonomous recruitment of new employees with the necessary qualifications, particularly those with IT expertise. Additionally, activating the promotion process of existing employees based in planned work positions is also essential.

Amendment of Sectoral Legislation on Misdemeanour Sanctions

According to the GDPR, misdemeanour sanctions should be dissuasive, effective, and proportionate. Therefore, it is necessary to amend the sectoral legislation related to misdemeanours in order to increase fines for natural persons (both responsible and official persons), and to adjust the provisions concerning the statute of limitations for misdemeanour prosecution.

To achieve this goal, the PDPA will undertake the following actions:

- Initiating and promoting the need for adoption of the Law for Amending and Supplementing the Law on Personal Data Protection, along with its full implementation
- Striving for independent and autonomous management of the PDPA's allocated budget funds.
- Providing education to PDPA employees to ensure they have up-to-date knowledge and skills.
- Enhancing the PDPA›s technological foresight to ensure the Agency is equipped and prepared to answer rapidly evolving technologies.
- Ensuring the recruitment of new staff at the PDPA.
- Continuously promoting the existing PDPA staff.
- Initiating and advocating for amendments and additions to the sectoral legislation on misdemeanours, and ensuring their full implementation.
- Applying dissuasive, effective, and proportionate misdemeanour sanctions to encourage behaviour change and foster an improved culture of compliance with personal data protection by controllers and processors.

3.2. Strategic goal 2 – Harmonize legislation

> *Desired outcome: Achieving compliance with EU legislation and the necessary level of harmonization of sectoral legislation with the LPDP.*

The PDPA has adopted the Methodology for Harmonization of Sectoral Legislation with the LPDP, which provides guidelines regulating the actions of ministries in harmonizing departmental legislation. This includes revising existing laws and assessing the impact of new laws on personal data protection. However, the obligation established by the LPDP to align other laws relating to the processing of personal data with its provisions has not yet been fully met. Further efforts are needed to ensure complete harmonization with EU legislation, including full transposition of the GDPR and Directive (EU) 2016/680 of the European Parliament and the Council of 27 April 2016 on the protection of natural persons regarding processing of personal data by competent authorities for purposes related to the prevention, investigation, detection or prosecution of criminal offences or the execution of criminal penalties, and the free movement of such data. This directive also repeals Council Framework Decision 2008/977/JHA (the EU Law Enforcement Directive).

Adoption of a Law Transposing the EU Law Enforcement Directive

The lack of national legislation to transpose the EU Law Enforcement Directive presents a significant issue that must be addressed promptly. In the coming period, it is essential to pass the law that will transpose the EU Law Enforcement Directive to complete the normative alignment with EU law in this area.

Harmonization of National Laws with EU Legislation in the Area of Personal Data Protection

Laws and regulations governing the processing of personal data must comply with the provisions of the LPDP and EU legislation. In that context, the PDPA provides guidelines to ministries on how to conduct impact assessments of laws related to data protection, ensuring they address and elaborate on issues concerning the processing of personal data.

As part of aligning with EU legislation, it is essential 00to harmonize the laws regarding the transfer of personal data. This includes simplifying processes for transferring personal data by proposing new measures to facilitate the transfer of personal data to third countries and international organizations, thereby simplifying the processes for controllers and processors.

Harmonization of Legislation in the Context of Digitization Processes

As part of the EU›s broader digital strategy, several acts have been adopted or are in the process of adoption, including the EU e-Privacy Directive, AI Act, Data Governance Act, Data Act, European Health Data Space Regulation, Digital Services Act, Digital Markets Act, Network and Information Security Directive. These acts must be reflected in national legislation to fully implement the new standards and values, particularly those related to personal data. Within these frameworks, activities must be undertaken to implement the Framework Convention on Artificial Intelligence and Human Rights, Democracy, and the Rule of Law of the Council of Europe, once ratified by the Republic of North Macedonia.

To achieve this goal, the PDPA will undertake the following actions:

- Initiating and advocating for the adoption of the Law on Transposition of the EU Law Enforcement Directive.
- Monitoring the proposed laws by ministries.
- Providing opinions on submitted laws.
- Offering consultations on submitted regulations.
- Publishing case studies that explain how the LPDP is applied, how non-compliance with the law is determined, and how corrective measures are enforced
- Adopting the Methodology for Data Transfer Impact Assessment.
- Promoting the need to transpose acts resulting from the EU digital strategy.
- Promoting the implementation of the Framework Convention on Artificial Intelligence and Human Rights, Democracy, and the Rule of Law of the Council of Europe.

3.3. Strategic goal 3 – Foster a continuous increase in personal data protection culture

Desired outcome: Controllers from both the public and private sector are well-informed and accountable for their activities related to the protection of personal data, while citizens have a better understanding of their rights regarding personal data protection, know-how to exercise those rights, and are aware of when to turn to the PDPA for assistance.

The PDPA is recognized as a promoter and protector of fundamental rights and freedoms in the processing of personal data. However, despite the ongoing efforts of the PDPA and its partners to organize and implement successful awareness programs and actions, there remains is significant need to raise and educate citizens' awareness about the importance of personal data protection. At the same time, there is a need to improve the general culture around the processing of personal data by controllers, processors and users. The PDPA also continues to foster international cooperation with data protection authorities, contributing to the improvement of data protection culture in line with European values and standards.

Enhanced Cooperation with Data Protection Authorities and Other International Organizations and Bodies

International cooperation plays a crucial role in establishing unified practices on key issues and helps ensure alignment with the opinions, guidelines and best practices of data protection authorities and international organizations and bodies. The PDPA has observer status in the European Data Protection Board activities, actively participates in the plenary sessions of the Committee on Convention 108/81 of the Council of Europe, collaborate with regional data protection authorities (DPAs) through the

20i7 Initiative and participates in events organized by other international organizations and bodies. Effective handling of international matters by the PDPA will be achieved by expanding activities and developing mechanisms for international cooperation, preparing procedures for international legal assistance and strengthening relationships with data protection authorities and international organizations and bodies.

Continuous Cooperation with the Public, Private and Civil Sector

Collaboration with the public, private and civil sectors is essential for creating a robust framework for personal data protection that addressed societal needs, while ensuring accountability and transparency in personal data processing practices. The right to personal data protection is not an ˝isolated˝ right, but is closely related to many other right which often need to be balanced.

As part of this collaboration, a key focus will be on strengthening partnerships with data controllers in the public sector by organizing workshops, meetings, coordination meetings and trainings for senior management, DPOs, and public sector employees. This will help increase the efficiency of promoting constitutionally guaranteed rights through the establishment of harmonized personal data protection legislation.

While the PDPA's primary responsibility is to supervise the legality of personal data processing of natural persons, its preventive and awareness-raising role is equally important. In many cases data subjects are insufficiently informed about their rights or how to exercise. In this regard, civil sector associations play an essential role in informing and educating the public about personal data protection, and privacy right. These organizations often possess specialized knowledge and expertise on specific data protection issues and play a vital role in raising public awareness on data protection rights and issues. The PDPA will ensure continuous cooperation and knowledge exchange with these associations, while also fostering various forms of collaboration with private sector data controllers.

Data Protection Trainings

One of the PDPA's key tasks is to conduct data protection trainings, ensuring that all actors (DPOs, controllers, processors, etc.) who process personal data do so transparently, legally, and in compliance with regulations. By improving the quality of these trainings and expanding the level of their implementation, the PDPA aims to educate all stakeholders on the measures they can take to better protect personal data in their daily operations.

Increasing Transparency and Enhancing the Visibility of the PDPA

The PDPA is continuously working to raise awareness and improve the general understanding of personal data protection among controllers/processors, enabling them to effectively implement personal data protection practices. PDPA employees regularly hold consultations and meetings with stakeholders and communicate daily with citizens seeking information about their personal data protection rights. The PDPA also makes appearances in the media (press, radio, TV, internet platforms), conducts activities in primary and secondary schools through lectures on the importance of privacy and internet safety, and organizes events to promote materials aimed at raising citizens› awareness. However, there is need

for more frequent promotional activities that enhance the transparency of the PDPA's work and improve communication with stakeholders. Regular public information updates, increased use of materials published on the PDPA's website, and outreach to vulnerable groups of citizens are crucial to this goal.

To achieve this goal, the PDPA will undertake the following actions:

- Collaborating with data protection experts from other data protection authorities, international organizations, and bodies.
- Collaborating with the European Data Protection Board to monitor the personal data protection rules impacting the harmonized application of the GDPR.
- Cooperating and communicating with data protection authorities in cases concerning urgent issues.
- Increasing the number of data protection training sessions.
- Organizing events and meetings with controllers and processors to foster a culture of openness, trust, and compliance with data protection regulations.
- Hosting workshops and training sessions with data controllers from both the public and private sectors to ensure legislation aligns with personal data protection regulations.
- Publishing guidelines and information resources for citizens, including vulnerable groups (the elderly, children) to promote understanding of the LPDP and empower individuals to control their personal data.
- Improving the user experience of the PDPA's website, including the standardized information forms and content publication.

3.4. Strategic goal 4 – Implement Accountability Tools

Desired outcome: Controllers should design systems for processing personal data in accordance with the principle of data protection by design and by default, demonstrating and proving compliance with personal data protection regulations.

As technology evolves, the volume of processed data grows rapidly, increasing the risk associated with personal data processing. The PDPA will support controllers and processors in adhering to the fundamental principles and requirements of the LPDP in their personal data processing activities and business practices. By offering a wide range of techniques and tools to effectively implement personal data protection principles and protect individual rights, controllers and processors will be encouraged to implement a system that is compliant with LPDP provisions.

Improving Accountability Tools to Promote Compliance Among Controllers

Accountability tools for data protection are essential for controllers, as they ensure compliance with LPDP. Tools such as data protection by design and default, data protection impact assessment, the appointment of a DPO, and binding corporate rules help controllers actively manage the risks associated with personal data processing. This encourages trust among citizens, reduces risks and promotes a culture of personal data protection with the controllers. While accountability tools help controllers comply with data protection regulations, they also enhance their personal data management practices.

Certification and Codes of Conduct

Certification of personal data processing systems is one of the most effective tools for ensuring compliance of controllers and processors with personal data protection regulations. This proactive approach minimizes number of risks for controllers and processors while supporting the efficient use of PDPA's resources. In many countries, key sectors covering a number of controllers and processors have developed codes of conduct to set standards in the field of personal data protection and privacy. This is a form of self-regulation, overseen and approved by the PDPA, to ensure compliance of controllers and processors, and provide greater protection for data subjects.

Networking of DPOs

DPOs currently lack sufficient influence over personal data protection issues, and their independence is not adequately guaranteed. Therefore, it is necessary to strengthen their position and role among the controllers through their continuous training, alongside efforts to raise awareness among management about the importance of compliance with personal data protection regulations. For the purposes of cooperation and exchange of experiences between DPOs, they should utilize the opportunities of the DPO network. Given the importance of mutual interaction and especially the importance of sharing best practices and advice, the network is a useful tool for enhancing DPO's access to information and improving their efficiency. It is also advisable to establish sector-special groups within the network for giving advice and exchanging views on shared issues and challenges. DPOs should follow personal data protection training and use self-improvement tools.

Activities to Improve the Position of DPOs

The fact is that DPOs often operate in isolation within controllers and their role is regularly misunderstood. In order to strengthen their independence in the workplace, the PDPA should carry out supervisory activities to assess their position and the effectiveness in fulfilling their legally established duties. These supervisory activities should evaluate whether the DPO at the controller is appropriately and timely involved in all issues related to personal data protection, whether support and resources are provided by the controller for DPOs to perform their duties, whether the controller works to maintain his/her her professional knowledge etc.

To achieve this goal, the PDPA will undertake the following actions:

- Promote accountability tools and adopt practical implementation documents for controllers.
- Adopt documents on certification and codes of conduct.
- Organize consultations, meetings and round tables related to certification and codes of conduct.
- Actively pursue the development of codes of conduct and certifications to promote best sectoral practices and demonstrable compliance in data processing activities.
- Create and deliver training programs for DPOs and their certification.
- Activate and promote the DPO network.
- Organize meetings and round tables to improve communication with DPOs and address the dilemmas they have regarding compliance with the law
- Encourage the use of e-classroom web platform by DPO's
- Carry out supervisions focused on the position of DPO within the controllers keeping statistical records regarding the findings of those supervisions.

4. STRATEGIC MAP FOR THE PERIOD 2025-2030

The strategic map below summarizes all the strategic goals defined for the upcoming period.

There are several activities defined for each of the goals, identifying all necessary steps to transition from the current status to the desired future state.

Strategic goals can be revised on an ongoing basis to adapt to emerging situations, ensuring the strategy remains flexible.

Similarly, activities should be reviewed regularly to align with their respective time frames.

STRATEGIC MAP

<table>
<tr><td rowspan="2">Implementation of the right to personal data protection for 2025-2030</td><td colspan="3">Our mission is to protect citizens' rights while promoting a culture of transparency and accountability</td></tr>
<tr><td colspan="3">Our vision is to foster an open and harmonized data protection environment, enhancing public trust in data protection practices and engaging stakeholders proactively</td></tr>
<tr><td colspan="4">NATURAL PERSONS</td></tr>
<tr><td colspan="4">CONTINUOUS ENHANCEMENT OF PERSONAL DATA PROTECTION CULTURE</td></tr>
<tr><td>Enhanced international cooperation</td><td>Ongoing cooperation with the public, private and civil sectors</td><td>Data protection trainings</td><td>Increasing the transparency and improving visibility of the PDPA</td></tr>
<tr><td colspan="4">CONTROLLERS</td></tr>
<tr><td colspan="4">IMPLEMENTATION OF TOOLS TO PROMOTE ACCOUNTABILITY</td></tr>
<tr><td>Promoting accountability tools and adopting documents for their practical implementation by controllers</td><td>Certification and codes of conduct</td><td>Networking of DPOs</td><td>Activities to improve the position of the DPO</td></tr>
</table>

5. MONITORING AND ASSESSING STRATEGY PROGRESS

One of the success factors of strategy management is the regular measurement/monitoring of progress towards the implementation of goals and objectives.

To track this progress, a set of indicators has been defined, linked to the hierarchy of strategic goals and activities:

- Key performance indicators at the level of strategic goals and objectives
- Performance or operational indicators and success criteria at the level of actions

The table summarizing the strategic goals also defines the tasks and activities linked to these indicators/success factors. The initial and target value for the indicators will be determined once the definition and data sources of the indicators are finalized. Indicator values will be measured annually, and target values will be updated as needed based on the results.

Additionally, the PDPA will establish mechanisms for cooperation with key institutions in monitoring strategy progress, especially the Ministry of Justice, the Ministry of Public Administration, the Ministry of Finance, and the Ministry of Digital Transformation. This cooperation is crucial, bearing in mind that the achievement of strategic goals depends not only on the PDPA, but also on the strategic priorities of these institutions.

5.1. Proposed monitoring approach for Strategy implementation

The development of the Strategy for implementing the right to personal data protection in the Republic of North Macedonia (2025-2030) is a systematic work, based on the definition of the Strategy's Mission and culminating in the creation of an Action Plan to achieve the vision. By implementing the elements of the Action Plan, the activities will be fulfilled, and the cumulative outcome of these activities will lead to the achievement of the strategic goals. In turn, this will ensure that the vision is realized and the mission of the strategy is fulfilled.

To efficiently monitor the implementation of the Strategy, the PDPA must assess whether the activities have been carried out and whether the strategic goals have been achieved. For the action level, simple, easily measurable KPIs should be defined to track the actual progress towards each goal.

The next chapter outlines the KPI system and proposes a method for evaluating the results.

5.2. Proposed system of KPIs

When developing the Strategy, a set of KPIs was defined to measure the level of implementation of strategic goals and activities. The table below provides a definition, description, and method of measurement for each KPI.

- Activities are considered "fulfilled" if the associated KPI meets the target value, demonstrating the required development through a percentage %, number or Yes/No indicator.
- Strategic goals are considered "fulfilled" if all tasks associated with them are completed.

There are two categories of KPI:

- Quantitative KPIs: These reflect an absolute figure or percentage of completion relative to the total number of relevant activities. It is crucial that these KPIs are based on objective calculations of factual data. Therefore, these KPIs are linked to databases/registers already available at the PDPA.
- Event/happening based KPIs (Yes/No type): These measure the success of a set of actions aimed at a particular issue (such as the decision to adopt the EU Law Enforcement Directive).

PROPOSED KPIs

The table below provides the most important information about the KPIs defined in the Action Plan for each of the goals:

STRATEGIC GOAL 1: Ensure the overall autonomy and independence of the PDPA

Activity 1: Adoption of the Law amending and supplementing the Law on Personal Data Protection to ensure the autonomy and independence of the PDPA in managing finances and human resources		
KPI	**Time frame**	**Result/status**
Adoption of the Law Amending and Supplementing the Law on Personal Data Protection	Last quarter of 2025 – first quarter of 2026	Yes/No
% of funds allocated for employment	2025 - Continuous	percentage
% of funds allocated for employee promotion	2025 - Continuous	percentage
% of funds allocated for employee training	2025 - Continuous	percentage
% of funds allocated for rewarding employees	2025 - Continuous	percentage
Activity 2: Strengthening the capacities of the PDPA		
KPI	**Time frame**	**Result/status**
Number of new hires	2025 - Continuous	Number
Number of employee promotions	2025 - Continuous	Number
Number of training sessions per employee	2025 - Continuous	Number
Number of new hardware and software equipment purchased	2025 - Continuous	Number
% of application software (systems) transferred to cloud	2025 - Continuous	percentage
Activity 3: Amendment of the sectoral legislation on misdemeanour sanctions		
KPI	**Time frame**	**Result/status**
Adopted changes and additions to the sectoral legislation on misdemeanours	Last quarter of 2025 – first quarter of 2026	Yes/No
Number of submitted requests for the initiation of misdemeanour proceedings	2025 - Continuous	Number
Number of misdemeanour sanctions imposed	2025 – Continuous	Number
Number of misdemeanour sanctions executed	2025 - Continuous	Number

STRATEGIC GOAL 2: Harmonizing legislation

Activity 1: Adoption of a Law transposing Directive (EU) 2016/680 of the European Parliament and of the Council of April 27, 2016 (EU Law Enforcement Directive)		
KPI	**Time frame**	**Result/status**
Adoption of the Law on the Transposition of the EU Law Enforcement Directive	Last quarter of 2025 – first quarter of 2026	Yes/No
Activity 2: Harmonization of the laws with the EU legislation in the area of personal data protection		
KPI	**Time frame**	**Result/status**
% of the Government's annual program for laws compliant with the LPDP	2025 – Continuous	%
% of the Government's annual program for laws compliant with the EU Law Enforcement Directive	2025 - Continuous	%
Number of requested opinions on regulations	2025 - Continuous	Number
Number of regulations with assessments prepared according to the Methodology for Harmonizing Sectoral Legislation with the LPDP	2025 - Continuous	Number
Number of submitted Data Transfer Impact Assessments	2025 - Continuous	Number
Adoption of the Methodology for Data Transfer Impact Assessment	Second quarter of 2026	Yes/No
Activity 3: Harmonization of legislation from the aspect of digitization processes		
KPI	**Time frame**	**Result/status**
Number of adopted laws for the transposition of the digital package	2025 - Continuous	Number
Number of consultations held for the digital package	2025 - Continuous	Number
Adopted instructions, guidelines and internal documents on issues from the digital package	2025 - Continuous	Number

STRATEGIC GOAL 3: Foster a continuous increase in personal data protection culture

Activity 1: Enhanced cooperation with data protection authorities and other international organizations and bodies		
KPI	**Time frame**	**Result/status**
Number of activities	Continuous	Number
Number of participants in the PDPA's activities	Continuous	Number
Activity 2: Continuous cooperation with the public, private and civil sector		
KPI	**Time frame**	**Result/status**
Number of events organized with stakeholders	Continuous	Number
Number of participants to the events	Continuous	Number
Number of memoranda concluded	Continuous	Number
Publication of materials (brochures, newsletters)	Continuous	Number
% of submitted requests by citizens in electronic form	Continuous	%
Activity 3: Data protection trainings		
KPI	**Time frame**	**Result/status**
Number of trainings for controllers	Continuous	Number
Number of trainings for employees	Continuous	Number
Number of registered participants for e-classroom training	Continuous	Number
Number of natural persons with successful e-classroom training	Continuous	Number
Activity 4: Increasing the transparency and better visibility of the PDPA		
KPI	**Time frame**	**Result/status**
Number of meetings with stakeholders	Continuous	Number
Number of natural persons who participated in the meetings	Continuous	Number
Number of public appearances in the media (press, TV, internet, radio)	Continuous	Number
Number of promotional activities (surveys, implementation of campaigns)	Continuous	Number
Number of visitors to the website	Continuous	Number
Number of published materials on the website	Continuous	Number
Number of public events attended by PDPA employees	Continuous	Number
Number of participants from PDPA at public events	Continuous	Number
Press Clipping	Continuous	Number

STRATEGIC GOAL 4: Implement accountability tools

Activity 1: Improving accountability tools to promote compliance of the controllers and processors		
KPI	**Time frame**	**Result/status**
Number of documents adopted to promote accountability ads	2026 - continuous	Number
Activity 2: Certification and codes of conduct		
KPI	**Time frame**	**Result/status**
Number of consultations, round tables, bilateral meetings related to certification and codes of conduct	Continuous	Number
Adopted documents on certification and codes of conduct	2027 - continuous	Number
Number of DPO trainings during certification processes	2028 - continuous	Number
Activity 3: Networking of DPOs		
KPI	**Time frame**	**Result/status**
Establishment of the DPO network	2026	Yes/No
Number of activities implemented in the network	2026 - continuous	Number
Number of controllers who reported that they appointed a DPO	Continuous	Number
Activity 4: Activities to improve the position of the DPO		
KPI	**Time frame**	**Result/status**
% of control supervisions from the total number of conducted supervisions (regular and extraordinary)	Continuous	%
% of the results of conducted surveys on the role, responsibilities, and tasks of the DPO	2025 - continuous	%

